



### CHAPTER xlviii.

An Act to confirm a Provisional Order made by the Minister of Transport under the Reading Corporation Act 1935 relating to Reading Corporation trolley vehicles.  
[1st August 1946.]

**W**HEREAS under the authority of section twelve of the 25 & 26 Geo. 5. Reading Corporation Act 1935 the Minister of Transport <sup>c. xc.</sup> has made the Provisional Order set out in the schedule to this Act annexed :

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order which as amended is set out in the schedule Confirmation to this Act annexed shall be and the same is hereby confirmed of Order in and all the provisions thereof in manner and form as they are <sup>schedule.</sup> set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Reading Corporation (Trolley Short title. Vehicles) Order Confirmation Act 1946.

## SCHEDULE.

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### READING CORPORATION.

*Order authorising the mayor aldermen and burgesses of the borough of Reading to use trolley vehicles upon additional routes in the borough of Reading.*

Short and  
collective  
titles.

1.—(1) This Order may be cited as the Reading Corporation (Trolley Vehicles) Order 1946.

(2) The Reading Corporation (Trolley Vehicles) Acts and Order 1914 to 1936 and this Order may be cited together as the Reading Corporation (Trolley Vehicles) Acts and Orders 1914 to 1946.

Interpretation.

2. In this Order the following expressions have the meanings hereby assigned to them respectively (that is to say):—

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Reading ;

“ The borough ” means the county borough of Reading ;

4 & 5 Geo. 5.  
c. ci.

“ The Act of 1914 ” means the Reading Corporation Act 1914 ;

“ The Act of 1935 ” means the Reading Corporation Act 1935 ;

“ Trolley vehicle ” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1935.

Power to use  
trolley  
vehicles upon  
certain routes.

3. Subject to the provisions of this Order and of the Act of 1935 so far as such provisions relate to trolley vehicles and are applicable to this Order the Corporation may use trolley vehicles upon the following routes in the borough in addition to any routes upon which they are authorised by the Reading Corporation (Trolley Vehicles) Acts and Order 1914 to 1936 to use such vehicles (that is to say):—

Route No. 1 (2 furlongs 7·91 chains or thereabouts in length) commencing by a junction with Route No. 3 authorised by the Act of 1914 at the junction of Hemdean Road with Church Street proceeding along Hemdean Road to its junction with Oxford Street thence along Oxford Street to its junction with Prospect Street thence along Prospect Street to and terminating at the junction of that street with Church Street by a further junction with the said Route No. 3 ;

Route No. 2 (1 furlong 3·46 chains or thereabouts in length) commencing at the termination of Route No. 1 authorised by the Act of 1935 at the junction of Caversham Road with Thames Side Promenade thence along Caversham Road over

the River Thames by means of Caversham Bridge and along Bridge Street to and terminating at the junction of Bridge Street with Church Street by a junction with Route No. 3 authorised by the Act of 1914 ;

Route No. 3 (1 furlong 8.87 chains or thereabouts in length) commencing at the termination of Route No. 1 authorised by the Act of 1914 at the junction of Station Road with Blagrove Street proceeding along Station Road Station Approach Station Hill and Tudor Road to and terminating at the junction of that road with Caversham Road by a junction with Route No. 1 authorised by the Act of 1935 ;

Route No. 4 (2 furlongs 1.68 chains or thereabouts in length) commencing in Friar Street at its junction with West Street by a junction with Route No. 1 authorised by the Act of 1935 proceeding along Friar Street to and terminating at the junction of that street with Blagrove Street by a junction with Route No. 2 authorised by the Act of 1914 ;

Route No. 5 (1 mile 1 furlong 1.25 chains or thereabouts in length) commencing by a junction with Route No. 5 authorised by the Act of 1935 at the junction of London Street with Mill Lane proceeding along London Street London Road Craven Road and Erleigh Road to and terminating at the junction of the last-mentioned road with Addington Road ;

Route No. 6 (1 furlong or thereabouts in length) commencing in Crown Street by a junction with Route No. 3 authorised by the Act of 1935 at the junction of Crown Street and Southampton Street proceeding along Crown Street to and terminating by a junction with Route No. 5 hereinbefore described at the junction of London Street and London Road ;

Route No. 7 (2 miles 3.49 chains or thereabouts in length) commencing at the termination of Route No. 3 authorised by the Act of 1935 at the junction of Whitley Street with Christchurch Road proceeding along Whitley Street Basingstoke Road and Whitley Wood Lane to and terminating at the junction of that lane with Whitley Wood Road ;

Route No. 8 (6 furlongs 9.90 chains or thereabouts in length) commencing by a junction with Route No. 7 hereinbefore described at the junction of Buckland Road with Basingstoke Road proceeding along Buckland Road and Northumberland Avenue to and terminating at the junction of that avenue with Hartland Road ;

Route No. 9 (6 furlongs 4.31 chains or thereabouts in length at present operated in pursuance of the Reading Corporation (Trolley Vehicles) Order 1943 made under the Defence (General) Regulations 1939) commencing at the terminus

of Route No. 2 authorised by the Act of 1935 at the junction of Oxford Road with Norcot Road proceeding along Oxford Road to and terminating at the junction of Oxford Road with Kentwood Hill ;

Route No. 10 (3 furlongs 6·43 chains or thereabouts in length) commencing at the termination of Route No. 9 hereinbefore described proceeding along Oxford Road to and terminating at a point 8·15 chains or thereabouts north-west of its junction with Elsley Road :

Provided that before equipping any route to include a turning point or arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval :

Provided also that no provision shall be made for the turning of trolley vehicles on any road or street maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld.

Any question as to whether any such consent is unreasonably withheld shall be determined by a single arbitrator to be appointed (unless otherwise agreed) by the President of the Institution of Civil Engineers and if in any case consent is deemed to have been unreasonably withheld it shall be deemed to have been given.

Period for  
completion  
of trolley  
vehicle  
equipment.

4. If the Corporation shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister of Transport may upon the application of the Corporation allow the powers conferred by this Order with reference to the use of trolley vehicles upon the route or routes upon which the Corporation shall not have commenced to use trolley vehicles shall cease to be exerciseable.

As to protection  
of Great  
Western  
Railway  
Company.

5. The provisions of section 33 (For protection of Great Western Railway Company) of the Act of 1914 shall as applied to this Order be read and construed as if—

(a) the following words had been inserted immediately after subsection (15) thereof :—

“ Nothing in this section contained shall prejudice alter or affect the rights of the Great Western Company or the Corporation under the agreement dated the twenty-first day of September nineteen hundred and thirty-seven and made between the Great Western Company of the one part and the Corporation of the other part ”;

(b) subsections (2) to (6) inclusive and (11) and (12) were omitted therefrom.

9 & 10 GEO. 6. *Reading Corporation* Ch. xlviii.  
*(Trolley Vehicles) Order Confirmation Act, 1946.*

6.—(1) The Corporation shall have power in addition and without Borrowing prejudice to their powers of borrowing under the Local Government powers. Act 1933 from time to time to borrow without the consent of any 23 & 24 Geo. 5. c. 51. sanctioning authority for or in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all money so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table (namely) :—

| 1                                                                                                                                                               | 2                  | 3                                                                                                    |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|------------------------------------------------------------------------------------------------------|
| Purpose.                                                                                                                                                        | Amount.            | Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing. |
| (a) The provision of trolley vehicles ...                                                                                                                       | £80,000            | Ten years.                                                                                           |
| (b) The provision of electrical equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order. | £46,000            | Twenty years.                                                                                        |
| (c) The payment of the costs charges and expenses of this Order.                                                                                                | The sum requisite. | Five years from the passing of this Order.                                                           |

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the said provisions of the Local Government Act 1933 to the borrowing of any further money for the purposes of this Order the Minister of Transport shall be the sanctioning authority.

7.—(1) So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by Restriction on regulations made under the Emergency Powers (Defence) Act 1939 2 & 3 Geo. 6. c. 62. or under that Act as extended by any subsequent enactment c. 62. including the Supplies and Services (Transitional Powers) Act 1945 9 Geo. 6. c. 10. or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an Order made under section 1 of the Borrowing (Control and Guarantees) Act 1946 9 & 10 Geo. 6. c. 58. it shall not be lawful otherwise than by the use of the Corporation's internal funds to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of this Order as hereinafter defined) without such consent.

(2) It shall not be lawful to exercise the powers of borrowing conferred by this Order otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

8 & 9 Geo. 6.  
c. 18.

Repeal of Order  
of 1943.

8. The Reading Corporation (Trolley Vehicles) Order 1943 is hereby repealed.

Costs of Order.

9. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

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